

Draft email to Avv. Primo Belardi — English translation

Note: This is an English translation of the Italian draft email (19_Draft_email_to_Belardi_v3.eml). It is for your review only. The actual email to be sent to Avv. Belardi is the Italian version.

From: Grahame McGirr <gmcgirr@naissance.co.uk>

To: Primo Belardi <avv.primobelardi@gmail.com>

Subject: Re: Naissance UK Ltd / Curatela Fallimento Agricola Gavioli — Defence approach and integrations

Dear Avv. Belardi,

Thank you for your email of 17 April and for your analysis of the documentation filed by the curator.

I have read your proposed defensive strategy carefully and, in general terms, **I confirm my agreement with its overall direction**, in particular as regards:

1. the **clerical error** (*errore materiale*) argument in the 14.12.2018 Istanza di Ammissione al Passivo prepared by Avv. Fiorilli;
2. the subordinate reservation to involve Avv. Paolo Fiorilli via his professional-indemnity insurer;
3. opening a parallel settlement dialogue with the curator on different and lower economic terms.

I would however like, before you draft the pleading, to share some reflections and additions that I think will strengthen our position, in light of the complete documentation I forwarded on Saturday 18 April.

1. The 14.12.2018 Istanza is actually internally inconsistent

Re-reading the text of the Istanza di Ammissione al Passivo carefully, one can see that:

- at **clause 3** of the premises, it refers to a credit of **€1,118,438.29**;
- at **clause 4**, it states a residual amount of **€572,438.29** expressly calculated as «(1,188,438.29 minus the assignment sum of €616,000.00)».

A quick arithmetic check confirms that only the second figure (€1,188,438.29) reconciles with the stated residual: €1,188,438.29 – €616,000 = €572,438.29, whereas €1,118,438.29 – €616,000 would give €502,438.29, which is incompatible with the Istanza itself and with all the attached documents (28.07.2017 credit assignment contracts).

Clause 3 of the Istanza therefore almost certainly contains a clerical typo. This strengthens your proposed primary line: the document is genuinely ambiguous, the attached contracts consistently show €1,188,438.29, and it would be inequitable to penalise Naissance for a drafting slip.

2. Proposal to integrate the defence on three further points

It remains true that the Delegated Judge admitted Naissance to the liabilities for €572,438.29, and the order admitting the state of liabilities is now binding within the bankruptcy. I would therefore ask you to consider integrating the defence on the following three points, which can operate principally or cumulatively alongside the clerical-error argument:

a) Finality of the 04.04.2019 distribution plan.

The distribution plan in the foreclosure proceeding RGE 187/2015 was approved by the Enforcement Judge at a hearing on 04.04.2019, **without opposition** from the curator or any other creditor, and **was not challenged** within the statutory time limits. Referring to Cass. 23482/2018 and 12673/2022 — of which I would ask you kindly to read the full text, not just the massimario — the curator now seeks an *ex post* re-allocation of the sums distributed. I would be grateful if the defence could:

- produce the minutes of the 04.04.2019 hearing and the distribution plan as filed;
- verify the presence / notification of the curator at the 04.04.2019 hearing;
- emphasise the curator's inaction in the enforcement proceeding;
- distinguish the Supreme Court precedents on their facts (in those cases the curator intervened in time).

b) Targeted challenge to the quantum €629,975.04 stated by the curator.

I would like to highlight three items within the €629,975.04 figure on which I ask the curator to be specifically held to account, with a clearly differentiated order of priority:

- **€30,000 classified as a "refund" of procedural expense advances (central point).**

The banking documentation in my possession shows that this figure corresponds to a €30,000 payment from Naissance to Argo Ge.Re.Cre. made on 5 June 2018 (cheque executed as FX wire — the same payment). The subsequent "refund" at the distribution is not, in economic terms, money Naissance *received from the bankruptcy estate*, but rather the return of an advance Naissance itself had previously paid.

The decisive legal question is whether, for the purposes of restitution under art. 110 L.F. / art. 2033 c.c., the calculation should be made on the **gross flows that passed through the procedure** or on the **net economic benefit** actually obtained by the creditor. In my view the second reading is the correct and equitable one, but I expressly ask you to give me your authoritative view on the position of the Court of Cassation and the lower courts on this point, **before** settling the pleading — this is the point on which to press hardest. If accepted, it reduces the claim from €57,536.75 to €27,536.75;

- **€3,932.00 expressly classified by the curator as "legal expenses not admitted to the bankruptcy liabilities"** (secondary point): by definition outside the formal concorso and therefore outside *ex lege* restitution. Moderate-strength argument, easily documented on the face of the Ricorso;
- **€4,761.47 in prededuzione** (legal fees from RGE 187/2015) excluded by the Delegated Judge at admission (discretionary point). Without reopening that ruling, I ask you to reserve — by way of exception — Naissance's right to have those expenses recognised as legitimately incurred, to be set off against any amount of restitution. Weaker argument, to be pleaded as an equitable exception.

I am aware that these three points do not have equal argumentative force and it is not realistic to expect them all to land cumulatively: the realistic target for a partial win is to bring the quantum into the **€25,000 – €35,000 range**, principally on the strength of the first point.

c) Calculation of interest.

The legal interest claimed by the curator from 01.07.2025 and subsequently at the commercial rate under art. 1284, para. 4 c.c. should, in my view, accrue only from the filing of the judicial claim, not from a mere formal demand. This is a specific point we can challenge.

3. Cost and market-value evidence, supporting the overall picture

On Saturday 18 April I forwarded to you, in several separate emails, the following additional documentation, which is useful to contextualise Naissance's economic position and the fairness of the auction price:

- **Documented financial flows** (totalling approximately €152,000, **net** of any double-counting between the €30,000 cheque and its related FX execution wire, which represent the same payment):
 - wire of €57,000 on 26.04.2018 to Argo Ge.Re.Cre., corresponding to the Gavioli cost items in the reconciliation schedule;
 - wire of €20,000 on 01.05.2018 to Argo Ge.Re.Cre.;
 - **cheque of €30,000**, executed as FX wire on 05.06.2018 (same payment, not an additional sum);
 - **cheque of €45,000**;
 - **Analytical cost schedule** (Gavioli and Bettolle), totalling approximately €60,311;
 - **Pre-auction expressions of interest** at €550,000 (06.09.2017), €620,000 (12.09.2017), and acceptance of a pre-auction transaction at €630,000. Read together with the final auction clearing price of €616,000, these data points confirm that the market value of the property was in line with the auction price, excluding any suggestion of a "hidden surplus" accruing to Naissance.
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4. Handling of the Fiorilli aspect

I confirm your approach of **not joining** Avv. Fiorilli in the present proceedings, so as not to compromise the costituzione deadline. However, as a precaution I would ask you to:

- prepare in the coming days, in my name, a **PEC diffida to Avv. Fiorilli** in terms sufficient to interrupt the limitation period on any professional-liability action, to be held in suspense and activated only after the outcome of this proceeding is known;
 - treat the Fiorilli dimension internally as a fallback, not as a front-line argument.
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5. Parallel settlement

I confirm your proposal to open a parallel settlement channel with the Curatore, Dott. Scarpellini. For the purposes of the negotiation mandate, I authorise you from now on to work within the following parameters:

- **opening**: €15,000 – €20,000 all-in (capital, interest, legal costs), prompt payment, saldo e stralcio;
- **target landing**: €25,000 – €35,000;
- **maximum authorised ceiling (walkaway)**: €45,000, still well below the total exposure in the event of a full loss (estimated at €70,000 – €85,000 including capital, interest, contributo unificato, the curator's legal costs and our own defence costs).

Given the particular features of this case, the concrete defensive arguments on quantum (especially the €30,000 at §2.b.) and the costs the curator will incur in pursuing the matter, there is realistic room for an agreement in the range indicated.

6. Operational requests

I would be very grateful if you could confirm as soon as possible:

1. your **authoritative view** on the gross-versus-net question in the context of restitution under art. 110 L.F. / art. 2033 c.c. (decisive point for the €30,000 argument at §2.b.): how is this treated by the lower courts and the Court of Cassation?;
2. your view on **distinguishing on the facts** the precedents Cass. 23482/2018 and 12673/2022 (it is not enough to invoke the finality of the distribution in the abstract; the distinctive features of our case must be identified);
3. the drafting timetable for the pleading, in view of the 4 May deadline;
4. your indicative and confidential estimate of the probability of success on each defensive line, with particular reference to the first point of §2.b. (€30,000 quantum) and to the binding weight of the admission to the liabilities for €572,438.29;
5. your view on the opportunity to request document production under art. 210 c.p.c. of the minutes of the 04.04.2019 hearing, the distribution plan, and the order enforcing the state of liabilities with specific reasoning on the exclusion of the prededuzione.

If useful, I am fully available for a short telephone or video call in the coming days.

Thank you again for your collaboration and for the clarity of your analysis. I look forward to your response.

Kind regards,

Grahame

Grahame McGirr

Director

Naissance UK Limited

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